

Calendar Line 6

Case Name: *Asefash Rivera v. Stanford Health Care*

Case No.: 24CV453093

This is a putative class and representative action under the Private Attorneys General Act (“PAGA”). Plaintiff Asefash Rivera alleges that defendant Stanford Health Care committed various wage and hour violations.

Before the Court is Defendant’s petition for coordination and motion to stay proceedings, which is unopposed. For reasons discussed below, the Court GRANTS the motion.

V. BACKGROUND

According to the allegations of the operative first amended complaint (“FAC”), Plaintiff worked as a Clinical Assistant/Medical Assistant/Patient Care Coordinator on an hourly, non-exempt basis. (FAC, ¶ 9.) Defendant failed: pay all wages owed, including minimum and overtime wages; provide compliant meal periods or compensation in lieu thereof; provide rest periods or compensation in lieu thereof; provide complete and accurate wage statements; timely pay wages; provide suitable resting facilities; and reimburse for necessary business expenses. (FAC, ¶¶ 18-26.)

Plaintiff initiated this action on December 2, 2024, with the filing of the Complaint and on January 6, 2025, she filed the operative FAC, which asserts the following causes of action: (1) failure to pay for all hours worked, including overtime hours worked; (2) failure to pay all wages owed twice per month; (3) failure to pay minimum wage; (4) rest break violations; (5) meal break violations; (6) failure to reimburse for required business expenses; (7) failure to provide accurate itemized wage statements & violation of record keeping requirements; (8) unlawful business practices; and (9) PAGA penalties.

VI. PETITION FOR COORDINATION

Defendant moves to coordinate the following cases:

- (1) *Asefash Rivera v. Stanford Health Care* (24CV453093) (*Rivera*), filed in Santa Clara County Superior Court on December 2, 2024;
- (2) *Joanne Ibay v. Stanford Health Care* (25CV477482) (*Ibay* Class Action), filed in Santa Clara County Superior Court on October 13, 2025;
- (3) *Jade Capwell v. Stanford Health Care* (26CV485505) (*Capwell*), filed in Santa Clara County Superior Court on January 26, 2026;
- (4) *Joanne Ibay v. Stanford Health Care* (26CV485937) (*Ibay* PAGA Action), filed in Santa Clara County Superior Court on February 2, 2026; and,
- (5) *Melissa Hirabayashi, et al. v. Stanford Health Care* (26-CIV-00864) (*Hirabayashi*), filed in San Mateo County Superior Court on February 4, 2026.

C. Legal Standard

California Rules of Court, rule 3.400, subdivision (a), defines a “complex case” as “an action that requires exceptional judicial management to avoid placing unnecessary burdens on the court or the litigants and to expedite the case, keep costs reasonable, and promote effective decision making by the court, the parties, and counsel.”

In deciding whether an action is a complex case under (a), the court must consider, among other things, whether the action is likely to involve:

- (1) Numerous pretrial motions raising difficult or novel legal issues that will be time-consuming to resolve;
- (2) Management of a large number of witnesses or a substantial amount of documentary evidence;
- (3) Management of a large number of separately represented parties;
- (4) Coordination with related actions pending in one or more courts in other counties, states, or countries, or in a federal court; or
- (5) Substantial postjudgment judicial supervision.

(California Rules of Court, rule 3.400, subdivision (b).) Title 3, Division 4, Chapter 7 of the California Rules of Court (i.e., rules 3.501 through 3.550) provides for the coordination of complex actions.

Code of Civil Procedure section 404, provides, “[w]hen civil actions sharing a common question of fact or law are pending in different courts, a petition for coordination may be submitted to the Chairperson of the Judicial Council, by the presiding judge of any such court, or by any party to one of the actions after obtaining permission from the presiding judge, or by all of the parties plaintiff or defendant in any such action. A petition for coordination, or a motion for permission to submit a petition, shall be supported by a declaration stating facts showing that the actions are complex, as defined by the Judicial Council and that the actions meet the standards specified in Section 404.1. On receipt of a petition for coordination, the Chairperson of the Judicial Council may assign a judge to determine whether the actions are complex, and if so, whether coordination of the actions is appropriate, or the Chairperson of the Judicial Council may authorize the presiding judge of a court to assign the matter to judicial officers of the court to make the determination in the same manner as assignments are made in other civil cases.” (Code of Civ. Proc., § 404.)

“Coordination of civil actions sharing a common question of fact or law is appropriate if one judge hearing all of the actions for all purposes in a selected site or sites will promote the ends of justice taking into account” the following factors: “whether the common question of fact or law is predominating and significant to the litigation; the convenience of parties, witnesses, and counsel; the relative development of the actions and the work product of counsel; the efficient utilization of judicial facilities and manpower; the calendar of the courts; the disadvantages of duplicative and inconsistent rulings, orders, or judgments; and, the likelihood of settlement of the actions without further litigation should coordination be denied.” (Code Civ. Proc., § 404.1 (“Section 404.1”); see also California Rules of Court, rule 3.521 [setting forth the requirements for a petition for coordination].) The trial court exercises its discretion in weighing and balancing these factors to determine whether coordination best serves the ends of justice in a particular case. (*Pesses v. Superior Court (Pacific Southwest Airlines)* (1980) 107 Cal.App.3d 117, 125-126.)

D. Discussion

Defendant is the sole defendant in the aforementioned actions. All the actions are wage and hour cases with common facts and overlapping legal issues. Additionally, each action is in the early stages with discovery just beginning or being stayed.

Here, each of the actions has been deemed complex by the respective courts. They are putative class actions, representative PAGA actions, or both. *Rivera* is a putative class and representative PAGA action, which asserts nine causes of actions, including one for PAGA penalties and the remaining for various Labor Code violations. The *Ibay* Class Action asserts eleven causes of action consisting of nine claims for Labor Code violations, one for discrimination and retaliation in violation of the Fair Employment and Housing Act, and one for constructive discharge and other adverse employment actions in violation of public policy. *Capwell* is a putative class action, which asserts nine causes of action consisting of eight claims for Labor Code violations and one for unfair competition. The *Ibay* PAGA Action seeks PAGA penalties. *Hirabayashi* is a putative class and representative PAGA action, which asserts seven causes of action, six for various Labor Code violations and one for PAGA penalties.

It is clear that common questions of law and fact predominate the actions because each of the actions assert wage and hour claims that cover overlapping groups of employees. Next, Defendant argues that the convenience of the parties, witnesses, and counsel would be served by coordination because due to the overlapping nature of the actions, Defendant will have to respond to identical or largely similar discovery, produce the same documents such as payroll and timekeeping dates, offer the same witnesses to testify about the same issues in each action, and participate in similar motion practice. The Court agrees, given the overlapping nature of the claims and legal questions, it would be more convenient for the parties, witnesses and counsel for the matters to be coordinated.

As noted above, all of the action are in the early stages with discovery just starting or being stayed. Thus, none of the cases have progressed much further ahead than any other case. Coordination at this time will minimize the extent to which the parties will have to conduct the same discovery, same motion practice, and encounter the same issues across the cases. As to the utilization of judicial facilities and manpower, here, coordination will reduce the burden on multiple courts, and it will avoid the need for several hearings on the issues. Similarly, coordination will avoid duplicative and inconsistent rulings on similar issues. Lastly, Defendant contends that coordination will provide the best opportunity for an orderly and efficient resolution. Plaintiffs failed to oppose the instant motion.

Upon full consideration, the Court finds that the section 404.1 factors weigh in favor of coordination. Accordingly, Defendant's petition is GRANTED.

VII. CONCLUSION

Defendant's petition for coordination of the included actions is GRANTED, and the Court orders the actions coordinated.

Considering the factors listed in California Rules of Court, rule 3.530(b) this court recommends Santa Clara County Superior Court as the site of the coordination proceedings.

The Court of Appeal, Sixth Appellate District, is designated the reviewing court having appellate jurisdiction.

Pursuant to California Rules of Court, rule 3.529(a), Defendant must “promptly file the order in each included action, serve it on each party appearing in an included action, and submit it to the Chair of the Judicial Council.

The Court will prepare the order.

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Calendar Line 7

Case Name:

Case No.:

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Calendar Line 8

Case Name: *Eric Koontz v. Cisco Systems, Inc.*

Case No.: 25CV474024

This is a representative action under the Private Attorneys General Act (“PAGA”). Plaintiff Eric Koontz alleges defendant Cisco Systems, Inc. committed various wage and hour violations.

Before the Court is Plaintiff’s motion for approval of PAGA settlement, which is unopposed. As discussed below, the Court GRANTS the motion.

VIII. BACKGROUND

According to the allegations of the operative Complaint, Plaintiff was employed by Defendant from 2005 to September 2024. (Complaint, ¶ 1.) As a condition of employment, Defendant required its employees to sign and abide by the terms of its Proprietary Information and Inventions Assignment Agreement (the “PIIA”). (Complaint, ¶ 8.) Plaintiff was required to sign the Agreement and continues to be bound by its terms. (Complaint, ¶¶ 9-13.) Defendant violated Labor Code section 923 and 232 by requiring employees to sign the Agreement, as a condition of employment. (Complaint, ¶¶ 17.)

Based on the foregoing, Plaintiff initiated this action on August 29, 2025, which asserts a single cause of action for PAGA penalties.

Plaintiff now moves for an order approving the Settlement Agreement (the “Settlement”).

IX. LEGAL STANDARD FOR APPROVING PAGA SETTLEMENT

Under PAGA, an aggrieved employee may bring a civil action personally and on behalf of other current or former employees to recover civil penalties for Labor Code violations. (*Iskanian v. CLS Transp. Los Angeles, LLC* (2014) 59 Cal.4th 348, 380, overruled on other grounds by *Viking River Cruises, Inc. v. Moriana* (2022) 596 U.S. 639 [2022 U.S. LEXIS 2940.]) 75 percent of any penalties recovered go to the Labor and Workforce Development Agency (LWDA), leaving the remaining 25 percent for the employees. (*Ibid.*) PAGA is intended “to augment the limited enforcement capability of [LWDA] by empowering employees to enforce the Labor Code as representatives of the Agency.” (*Id.* at p. 383.) A judgment in a PAGA action binds all those, including nonparty aggrieved employees, who would be bound by a judgment in an action brought by the government. (*Id.* at p. 381.)

Labor Code section 2699, subdivision (l)(2) provides that “[t]he superior court shall review and approve any settlement of any civil action filed pursuant to” PAGA. The court’s review “ensur[es] that any negotiated resolution is fair to those affected.” (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 549.) “[C]lass certification is not required” in this context as in a class action. (*Haralson v. U.S. Aviation Servs. Corp.* (N.D. Cal. 2019) 383 F. Supp. 3d 959, 971 (*Haralson*).)